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U.S. District Court - District of Colorado
District of Colorado (Denver)
CIVIL DOCKET FOR CASE #: 1:11-cv-01934-DME-BNB

Boardman v. Hauck et al
Assigned to: Senior Circuit Judge David M Ebel
Referred to: Magistrate Judge Boyd N. Boland
Cause: 28:1332 Diversity-Personal Injury

Date Filed: 07/26/2011
Date Terminated: 08/21/2012
Jury Demand: Both
Nature of Suit: 350 Motor Vehicle
Jurisdiction: Diversity

Plaintiff**Jeffrey A. Boardman**

represented by **James Francis Fosnaught**
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V.

Defendant**Dylan Hauck**
*an individual***Defendant****American Family Mutual Insurance
Company**
a Wisconsin corporation

represented by **Arthur R. Karstaedt , III**
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Date Filed	#	Docket Text
07/26/2011	<u>1</u>	COMPLAINT against American Family Mutual Insurance Company, Dylan Hauck (Filing fee \$ 350, Receipt Number 39863) Summons Issued, filed by Jeffrey A. Boardman. (Attachments: # <u>1</u> Civil Cover Sheet, # <u>2</u> Receipt)(lyg,) (Entered: 07/26/2011)
07/28/2011	<u>2</u>	ORDER of Reference to United State Magistrate Judge Boyd N. Boland. By Judge David M. Ebel on 7/28/2011. (sah,) (Entered: 07/28/2011)
08/02/2011	<u>3</u>	SUMMONS Returned Executed by Jeffrey A. Boardman. American Family Mutual Insurance Company served on 7/27/2011, answer due 8/17/2011. (Karp, Sander) (Entered: 08/02/2011)
08/02/2011	<u>4</u>	ORDER : Scheduling Conference set for 9/28/2011 10:00 AM in Courtroom A 401 before Magistrate Judge Boyd N. Boland, by Magistrate Judge Boyd N. Boland on 8/2/11. (bnbcd,) (Entered: 08/02/2011)
08/18/2011	<u>5</u>	CERTIFICATE of Mailing/Service by Plaintiff Jeffrey A. Boardman. (Karp, Sander) (Entered: 08/18/2011)
08/22/2011	<u>6</u>	MOTION for Extension of Time to File Answer or Otherwise Respond re <u>1</u> Complaint by Defendant American Family Mutual Insurance Company. (Attachments: # <u>1</u> Proposed Order (PDF Only))(Salg, Heather) (Entered: 08/22/2011)
08/23/2011	<u>7</u>	CERTIFICATE of Mailing/Service by Plaintiff Jeffrey A. Boardman. (Karp, Sander) (Entered: 08/23/2011)
08/23/2011	<u>8</u>	MEMORANDUM regarding <u>6</u> MOTION for Extension of Time to File Answer or Otherwise Respond re <u>1</u> Complaint filed by American Family Mutual Insurance Company. Motions referred to Magistrate Judge Boyd N. Boland, by Judge David M. Ebel on 8/23/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(lsw,) (Entered: 08/23/2011)
08/23/2011	<u>9</u>	MINUTE ORDER: granting <u>6</u> Motion for Extension of Time to Answer or Otherwise Respond. American Family Mutual Insurance Company answer due 9/19/2011, by

		Magistrate Judge Boyd N. Boland on 8/23/11.(bnbcd,) (Entered: 08/23/2011)
08/23/2011	10	CORPORATE DISCLOSURE STATEMENT by Defendant American Family Mutual Insurance Company.. (Hickey, Patrick) (Entered: 08/23/2011)
08/24/2011	11	Unopposed MOTION for Extension of Time to <i>Serve Defendant Dylan Hauck</i> by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Exhibit 1)(Karp, Sander) (Entered: 08/24/2011)
08/24/2011	12	MEMORANDUM regarding 11 Unopposed MOTION for Extension of Time to Serve Defendant Dylan Hauck filed by Jeffrey A. Boardman. Motions referred to Magistrate Judge Boyd N. Boland, by Judge David M. Ebel on 8/24/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(lsw,) (Entered: 08/24/2011)
08/25/2011	13	MINUTE ORDER : granting 11 Plaintiffs Unopposed Motion for Additional Time to Obtain Service of Process of Summons and Complaint on Defendant Dylan Hauck. Plaintiff has to and including September 28, 2011, in which to service process of summons and complaint on defendant Dylan Hauck, by Magistrate Judge Boyd N. Boland on 8/25/11.(bnbcd,) (Entered: 08/25/2011)
09/02/2011	14	NOTICE of Entry of Appearance of <i>James F. Fosnaught</i> by Sander N. Karp on behalf of Jeffrey A. Boardman (Karp, Sander) (Entered: 09/02/2011)
09/16/2011	15	Unopposed MOTION for Leave to Appear at <i>Scheduling/Planning Conference by Telephone</i> by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Proposed Order (PDF Only) Order)(Fosnaught, James) (Entered: 09/16/2011)
09/16/2011	16	MEMORANDUM regarding 15 Unopposed MOTION for Leave to Appear at Scheduling/Planning Conference by Telephone filed by Jeffrey A. Boardman. Motions referred to Magistrate Judge Boyd N. Boland, by Judge David M. Ebel on 9/16/11. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED(lsw,) (Entered: 09/16/2011)
09/19/2011	17	MINUTE ORDER: granting 15 Plaintiffs Unopposed Motion to Appear at Scheduling/Planning Conference by Telephone, by Magistrate Judge Boyd N. Boland on 9/19/11.(bnbcd,) (Entered: 09/19/2011)
09/19/2011	18	ANSWER to 1 Complaint by American Family Mutual Insurance Company.(Salg, Heather) (Entered: 09/19/2011)
09/21/2011	19	Proposed Scheduling Order by Plaintiff Jeffrey A. Boardman. (Fosnaught, James) (Entered: 09/21/2011)
09/28/2011	20	MINUTE ENTRY for proceedings held before Magistrate Judge Boyd N. Boland: Scheduling Conference held on 9/28/2011. Discovery due by 1/30/2012. Dispositive Motions due by 2/29/2012. Settlement Conference set for 1/19/2012 02:00 PM before Magistrate Judge Boyd N. Boland. Proposed Pretrial Order due by 3/15/2012. Final Pretrial Conference set for 3/22/2012 09:00 AM in Courtroom A 401 before Magistrate Judge Boyd N. Boland. (FTR: G.Mattei) (bnbcd,) (Entered: 09/28/2011)
09/28/2011	21	MINUTE ORDER : Proposed Pretrial Order due by 3/15/2012. Final Pretrial Conference set for 3/22/2012 02:00 PM in Courtroom A 401 before Magistrate Judge Boyd N. Boland. Settlement Conference set for 1/19/2012 02:00 PM before Magistrate Judge Boyd N. Boland, by Magistrate Judge Boyd N. Boland on 9/28/12. (bnbcd,) (Entered: 09/28/2011)
09/28/2011	22	SCHEDULING ORDER: by Magistrate Judge Boyd N. Boland on 9/28/11. (bnbcd,) (Entered: 09/28/2011)
09/29/2011	23	Utility Setting/Resetting Deadlines/Hearings: Pursuant to the Minute Entry and the Minute Order dated 9/28/2011: Final Pretrial Conference set for 3/22/2012 09:00 AM in

		Courtroom A 401 before Magistrate Judge Boyd N. Boland. TEXT ONLY ENTRY - NO DOCUMENT ATTACHED (sah,) (Entered: 09/29/2011)
11/16/2011	24	MINUTE ORDER : Settlement Conference reset for 1/24/2011 01:30 PM before Magistrate Judge Boyd N. Boland, by Magistrate Judge Boyd N. Boland on 11/16/11. (bnbcd,) (Entered: 11/16/2011)
11/16/2011	25	AMENDED MINUTE ORDER : Settlement Conference set for 1/24/2012 01:30 PM before Magistrate Judge Boyd N. Boland, by Magistrate Judge Boyd N. Boland on 11/16/11. (bnbcd,) (Entered: 11/16/2011)
01/13/2012	26	First MOTION for Leave to <i>File Rebuttal Fed.R.Civ.P. 26(a)(2) Disclosures to Defendant's Rebuttal Disclosures</i> by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Proposed Order (PDF Only))(Karp, Sander) (Entered: 01/13/2012)
01/17/2012	27	MEMORANDUM regarding 26 First MOTION for Leave to File Rebuttal Fed.R.Civ.P. 26(a)(2) Disclosures to Defendant's Rebuttal Disclosures filed by Jeffrey A. Boardman. Motion referred to Magistrate Judge Boyd N. Boland. By Judge David M. Ebel on 1/17/2012. Text Only Entry (sah,) (Entered: 01/17/2012)
01/17/2012	28	ORDER: granting 26 Plaintiffs Unopposed Motion to File Rebuttal Fed. R. Civ. P. 26(a)(2) Disclosures to Defendants Rebuttal Disclosures, by Magistrate Judge Boyd N. Boland on 1/17/12.(bnbcd,) (Entered: 01/18/2012)
01/24/2012	29	MINUTE ENTRY for proceedings held before Magistrate Judge Boyd N. Boland: Settlement Conference held on 1/24/2012. No settlement was reached as to any claims. (bnbcd,) (Entered: 01/24/2012)
01/25/2012	30	MOTION for Extension of Time to <i>Depose Franklin Shih, M.D.</i> by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Proposed Order (PDF Only))(Karp, Sander) (Entered: 01/25/2012)
01/25/2012	31	MEMORANDUM regarding 30 MOTION for Extension of Time to Depose Franklin Shih, M.D. filed by Jeffrey A. Boardman. Motion referred to Magistrate Judge Boyd N. Boland. By Judge David M. Ebel on 1/25/2012. Text Only Entry (sah,) (Entered: 01/25/2012)
01/26/2012	32	MINUTE ORDER: granting 30 Plaintiffs Unopposed Motion for Additional Time to Depose Defense Expert Franklin Shih, M.D. The deposition of defense expert Franklin Shih, M.D. may be taken on or before February 27, 2012, by Magistrate Judge Boyd N. Boland on 1/26/12.(bnbcd,) (Entered: 01/26/2012)
03/15/2012	33	Proposed Pretrial Order by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C, # 4 Exhibit D)(Karp, Sander) (Entered: 03/15/2012)
03/22/2012	34	MINUTE ENTRY for proceedings held before Magistrate Judge Boyd N. Boland: Final Pretrial Conference held on 3/22/2012. Pretrial Order was approved and filed with the corrections made of record. Exhibit lists and exhibits shall be supplemented with Bates numbers, in accordance with the directions of the Court, on or before April 27, 2012. Exhibits to be exchanged on or before April 27, 2012. Objections to be filed on or before May 14, 2012. (FTR: G.Mattei) (bnbcd,) (Entered: 03/22/2012)
03/22/2012	35	PRETRIAL ORDER: by Magistrate Judge Boyd N. Boland on 3/22/12. (bnbcd,) (Entered: 03/22/2012)
03/22/2012	36	MINUTE ORDER. Counsel for the parties are ordered to jointly call chambers no later than 3/29/12 to set this matter for a four-day jury trial and a Final Trial Preparation Conference, by Judge David M. Ebel on 3/22/12. (lygsl,) (Entered: 03/23/2012)

03/27/2012	37	ORDER Setting Trial Dates and Deadlines. Jury Trial set for 8/13/2012 08:30 AM in Courtroom C202 before Judge David M. Ebel. Final Trial Preparation Conference set for 8/8/2012 at 11:00 AM before Judge David M. Ebel by Judge David M. Ebel on 03/27/12. (jjhsl,) (Entered: 03/27/2012)
04/26/2012	38	Exhibit List by Plaintiff Jeffrey A. Boardman. (Karp, Sander) (Entered: 04/26/2012)
04/27/2012	39	ORDER: re: 38 Exhibit List filed by Jeffrey A. Boardman is stricken. The plaintiff shall file and serve an exhibit list, on or before May 4, 2012, by Magistrate Judge Boyd N. Boland on 4/27/12. (bnbcd,) (Entered: 04/27/2012)
04/27/2012	40	Exhibit List <i>Revised</i> by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit Defendant's Exhibits to Defendant's Revised Exhibits List for Final Pretrial Order)(Salg, Heather) (Entered: 04/27/2012)
04/30/2012	41	Exhibit List <i>Revised</i> by Plaintiff Jeffrey A. Boardman. (Karp, Sander) (Entered: 04/30/2012)
05/14/2012	42	OBJECTIONS to 41 Exhibit List by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit)(Salg, Heather) (Entered: 05/14/2012)
05/14/2012	43	OBJECTIONS to 40 Exhibit List of <i>Defendant</i> by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Exhibit 1)(Karp, Sander) (Entered: 05/14/2012)
05/22/2012	44	OBJECTIONS to 41 Exhibit List (<i>Amended</i>) by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit)(Salg, Heather) (Entered: 05/22/2012)
06/06/2012	45	Unopposed MOTION to Amend/Correct/Modify 35 Pretrial Order <i>Plaintiff's Witness List</i> by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Exhibit A, # 2 Proposed Order (PDF Only))(Karp, Sander) (Entered: 06/06/2012)
06/07/2012	46	MEMORANDUM regarding 45 Unopposed MOTION to Amend/Correct/Modify 35 Pretrial Order Plaintiff's Witness List filed by Jeffrey A. Boardman. Motions referred to Magistrate Judge Boyd N. Boland by Judge David M. Ebel on 06/07/12. Text Only Entry (jjhsl,) (Entered: 06/07/2012)
06/07/2012	47	Minute ORDER by Magistrate Judge Boyd N. Boland on 6/7/12 granting 45 Plaintiffs Unopposed Motion to Submit Amended Witness List. Amended Witness List is accepted for filing.(agarc,) (Entered: 06/07/2012)
06/07/2012	48	Amended Witness List by Plaintiff Jeffrey A. Boardman. (agarc,) (Entered: 06/07/2012)
06/14/2012	49	MOTION to Amend/Correct/Modify 35 Pretrial Order <i>Plaintiff Exhibit List</i> by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Exhibit C, # 2 Proposed Order (PDF Only))(Karp, Sander) (Entered: 06/14/2012)
06/14/2012	50	MEMORANDUM regarding 49 MOTION to Amend/Correct/Modify 35 Pretrial Order Plaintiff Exhibit List filed by Jeffrey A. Boardman. Motions referred to Magistrate Judge Boyd N. Boland by Judge David M. Ebel on 06/14/12. Text Only Entry (jjhsl,) (Entered: 06/14/2012)
06/18/2012	51	MINUTE ORDER granting 49 Motion to Amend Exhibit List. Amended Exhibit List, is accepted for filing by Magistrate Judge Boyd N. Boland on 06/18/12.(jjhsl,) (Entered: 06/18/2012)
06/18/2012	52	Exhibit List by Plaintiff Jeffrey A. Boardman. (jjhsl,) (Entered: 06/18/2012)
07/10/2012	53	NOTICE of Return of Service of Subpoena Duces Tecum on Neva Deal by Plaintiff Jeffrey A. Boardman (Karp, Sander) (Entered: 07/10/2012)

08/03/2012	54	Minute ORDER rescheduling the Trial Preparation Conference for 8/9/2012 at 01:00 PM before Judge David M. Ebel, by Judge David M. Ebel on 8/3/12. (lygsl,) (Entered: 08/03/2012)
08/07/2012	55	MOTION to Amend/Correct/Modify 52 Exhibit List by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Exhibit)(Karp, Sander) (Entered: 08/07/2012)
08/07/2012	56	MOTION to Amend/Correct/Modify 48 Witness List by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Appendix, # 2 Exhibit A and B)(Karp, Sander) (Entered: 08/07/2012)
08/07/2012	57	MOTION for Leave to Appear <i>at Trial by Telephone</i> by Plaintiff Jeffrey A. Boardman. (Karp, Sander) (Entered: 08/07/2012)
08/08/2012	58	MOTION in Limine by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Exhibit A-J) (Karp, Sander) (Entered: 08/08/2012)
08/09/2012	59	DESIGNATION OF DEPOSITION TESTIMONY by Plaintiff Jeffrey A. Boardman. (Karp, Sander) (Entered: 08/09/2012)
08/09/2012	60	DESIGNATION OF DEPOSITION TESTIMONY <i>and Objections</i> by Defendant American Family Mutual Insurance Company. (Salg, Heather) (Entered: 08/09/2012)
08/09/2012	61	MINUTE ENTRY for proceedings held before Judge David M. Ebel: Trial Preparation Conference held on 8/9/2012. Granting 57 Plaintiff's Unopposed Motion to Allow Trial Testimony by Telephone. Denying 58 Plaintiff's Motion in Limine. Granting 55 Plaintiff's Unopposed Motion to Submit Second Amended Exhibit List. Granting 56 Plaintiff's Unopposed Motion to Submit Amended Witness List. The Court ruled on several written and oral motions. Court Reporter: Tammy Hoffschmidt. (eseam) (Entered: 08/10/2012)
08/13/2012	62	MINUTE ENTRY for Jury Trial Day 1 proceedings held before Judge David M. Ebel on 8/13/2012. Court Reporter: Gwen Daniel. (babia) (Entered: 08/14/2012)
08/14/2012	64	MINUTE ENTRY for Jury Trial Day 2 proceedings held before Judge David M. Ebel on 8/14/2012. Court Reporter: Gwen Daniel. (babia) (Entered: 08/16/2012)
08/15/2012	63	Stipulation and ORDER Governing the Custody and Disposition of Trial Exhibits, Transcripts, and Papers, by Judge David M. Ebel on 8/15/12. (lygsl,) (Entered: 08/16/2012)
08/15/2012	65	MINUTE ENTRY for Jury Trial Day 3 proceedings held before Judge David M. Ebel on 8/15/2012. Court Reporter: Gwen Daniel. (babia) (Entered: 08/16/2012)
08/16/2012	66	Exhibits in Support of <i>Defendant's Email to Plaintiff's Counsel</i> by Defendant American Family Mutual Insurance Company. (Attachments: # 1 Exhibit)(Karstaedt, Arthur) (Entered: 08/16/2012)
08/16/2012	67	Memorandum and ORDER Excluding Evidence of Worker's Compensation Impairment Rating and Benefit Paid Therefor, by Judge David M. Ebel on 8/16/12. (lygsl,) (Entered: 08/16/2012)
08/16/2012	68	MINUTE ENTRY for proceedings held before Judge David M. Ebel. Jury Trial completed on 8/16/2012. Court Reporters: Gwen Daniel and Kara Spitler. (Attachments: # 1 redacted verdict form) (pabcd) (Entered: 08/20/2012)
08/21/2012	69	Final JUDGMENT by Clerk re: 68 Minute Entry- Jury Trial. The Court has ordered that Plaintiff(s) JEFFREY A. BOARDMAN recover from the Defendant(s) AMERICAN FAMILY MUTUAL INSURANCE COMPANY the amount of Three Hundred Twenty Five Dollars (\$325,000.00) plus post-judgment interest at the rate of 0.19%. on 8/21/12. (lygsl,) (Entered: 08/21/2012)

08/22/2012	70	WITHDRAWN- MOTION to Amend/Correct/Modify 69 Clerk's Judgment, by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Proposed Document, # 2 Proposed Order (PDF Only))(Karp, Sander) Modified on 9/12/2012 to indicate withdrawn pursuant to 9/12/12 Order (lygsl,). (Entered: 08/22/2012)
09/04/2012	71	Proposed Bill of Costs by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Exhibit A, # 2 Exhibit B, # 3 Exhibit C)(Karp, Sander) (Entered: 09/04/2012)
09/04/2012	72	CERTIFICATE of Counsel re: 71 Proposed Bill of Costs by Plaintiff Jeffrey A. Boardman. (Karp, Sander) (Entered: 09/04/2012)
09/11/2012	73	Costs Taxed in amount of \$ \$6,865.90 against Defendant. (lygsl,) (Entered: 09/11/2012)
09/11/2012	74	MOTION to Withdraw Document re 70 MOTION to Amend/Correct/Modify 69 Clerk's Judgment, by Plaintiff Jeffrey A. Boardman. (Attachments: # 1 Proposed Order (PDF Only))(Karp, Sander) (Entered: 09/11/2012)
09/12/2012	75	ORDER on Plaintiff's 74 Unopposed Motion to Withdraw Motion to Amend and Request for An Amended Entry of Judgment. ORDERED that the Motion is Granted. Plaintiff's Motion to Amend and Request for an Amended Entry of Judgment, Proposed Amended Judgment and Proposed Order to Clerk to Enter Amended Judgment 70 is hereby withdrawn, by Judge David M. Ebel on 9/12/12.(lygsl,) Modified on 9/13/2012 to add linkage (lygsl,). (Entered: 09/12/2012)
10/05/2012	76	SATISFACTION OF JUDGMENT re 69 Clerk's Judgment, entered In favor of Jeffrey A. Boardman Against American Family Mutual Insurance Company by Plaintiff Jeffrey A. Boardman. (Fosnaught, James) (Entered: 10/05/2012)

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